

TERMS AND CONDITIONS FOR HDBANK CREDIT CARD ISSUANCE AND USE

The Terms and Conditions for HDBank Credit Card issuance and use (“Terms and Conditions”) below, along with the Personal Credit Card application cum Contract of Credit Card use (“Application”) form a Contract of Credit Card issuance and use that legally binds the Cardholder and HDBank. When the Card is used by the Cardholder, it means that the Cardholder has accepted and is obligated to the Terms and Conditions below.

ARTICLE 1. INTERPRETATION OF TERMS

- 1.1. HCMC Development Joint Stock Commercial Bank (abbreviated as HDBank) refers to the bank issuing and acquiring credit cards in compliance with regulations of the State Bank of Vietnam and Card Associations.
- 1.2. HDBank Credit Card (hereinafter referred to as “Card”) refers to the Credit Card HDBank issued under the physical or virtual form, including domestic and international Credit Cards. The Card validity period printed on the Card allows the Cardholder to make Card transactions within the credit limit granted as agreed with HDBank.
- 1.3. Domestic credit cards refer to Credit Cards issued by HDBank that allow the Cardholders to make transactions within the territory of Vietnam.
- 1.4. International credit cards refer to Credit Cards issued by HDBank that allow the Cardholders to make transactions within the territory of Vietnam and outside the territory of Vietnam.
- 1.5. Physical Cards refer to Cards that are tangible, usually made of plastic and integrated with a magnetic stripe or an electronic chip to store Card data.
- 1.6. Virtual Cards refer to Cards that are not tangible, and exist electronically and hold Card information. These Cards are issued by HDBank to Cardholders to make transactions on the internet and in mobile applications; not including physical Cards registered to make transactions on the internet and in mobile applications. Virtual Cards can be printed as physical Cards by the Card Issuer at the request of the Cardholders.
- 1.7. Transaction points refer to the Business Units of HDBank, including Branches, Transaction Offices, and other Units with business functions of HDBank over time.
- 1.8. “Contract of card issuance and use” (hereinafter referred to as “Contract”) refers to the agreement between HDBank and the Cardholder on the issuance and use of the Credit Card. This Contract is composed of the Terms and Conditions for HDBank Credit Card issuance and use, and the Application cum Contract of Credit Card issuance and use or Application cum Contract of current account/product - service opening and use, or other documents of similar names as prescribed by HDBank in each period, directly signed/confirmed or electronically signed by HDBank and the Cardholder in accordance with regulations of HDBank and of the laws on electronic transactions.
- 1.9. Security contract refers to the mortgage/pledge/guarantee contract or other documents prescribing security interests to ensure the Cardholder’s fulfillment of obligations to HDBank.
- 1.10. Card statement refers to the notice HDBank sends to the Cardholder every month detailing the Cardholder’s transaction information such as: Card transactions, fees, interests incurred in the period, payment amount, opening balance, closing balance, minimum payment amount, payment due date, and other relevant information.

- 1.11. Statement period refers to the time period between 02 consecutive statements or the time period in which HDBank compiles the statement, starting from the date after the last period's Statement date to the end of the current period's Statement date.
- 1.12. Statement date refers to the date HDBank compiles the Card statement as regulated by HDBank.
- 1.13. Cardholders refer to the Principal Cardholder and the Supplementary Cardholder. Cardholder's name is printed on the Card.
- 1.14. Principal Cardholder refers to the individual requesting HDBank to issue the Card and representing to conclude the Contract of HDBank Credit Card issuance and use.
- 1.15. Supplementary Cardholder refers to the individuals who are issued the Cards as requested by the Principal Cardholder, committing in writing to fulfill all the arising obligations related to the use of the Card prescribed in the Contract.
- 1.16. Acquirer refers to HDBank or other credit institutions, foreign bank branches allowed to acquire Cards in compliance with law regulations.
- 1.17. Vietnam Card Association (abbreviated as "VCA") refers to the intermediary organizations providing the Card transaction processing systems connection service, carrying out data exchange digitally or by using documents and compensating the financial obligations arising from the Card transactions for HDBank, Acquirers, and Merchants in accordance with written agreements between relevant parties.
- 1.18. International Card Association (abbreviated as "ICA") refers to the foreign organizations established under foreign law regulations, having agreements with Card Issuers, Acquirers, switching companies, and/or other relevant parties to collaborate in card operations for cards with Issuer codes issued by the ICA or cards with foreign Issuer code, in compliance with Vietnam's law regulations and international commitments.
- 1.19. Merchants refer to the organizations and individuals accepting goods and services payment via Card in accordance with the Card payment contract signed with the Acquirers.
- 1.20. Invoices refer to the documents confirming Card transactions made by the Cardholder with the Merchant.
- 1.21. Customer Service hotline refers to the HDBank support hotline number 1900 6060 for receiving requests from Cardholders related to the issuance and use of the Cards, according to HDBank regulations in each period.
- 1.22. Card use suspension refers to when HDBank locks the card on the system and the Cardholder is temporarily unable to use the card.
- 1.23. Credit card account (hereinafter referred to as "Card Account") refers to the account opened with information of the Principal Cardholder at HDBank, used to manage Card transactions, fees, interests, and other amounts arising from using the Card. The Supplementary Cardholder uses the same account as the Principal Cardholder.
- 1.24. Card transactions refer to when the Cardholders use the Card to transfer, withdraw cash, pay for goods and services, and use other services provided by HDBank and other Acquirers.
- 1.25. Transaction amount refers to the amount of money the Cardholder uses in Card transactions.

- 1.26. Exchanged transaction amount refers to the exchanged transaction amount with the exchange rate from foreign currency to Vietnamese dong (VND) prescribed by HDBank or the ICAs.
- 1.27. Outstanding balance refers to the total amount the Cardholder must pay to HDBank, including Card transaction(s), arising interests, and other payables related to the use of the Card or other financial obligations (if any) not settled by the Cardholder to HDBank and listed in the monthly Card statement.
- 1.28. Debit amount refers to the total value of Card transactions and other transactions related to the use of the Card, including: exchanged transaction amount, fees prescribed by HDBank and the ICAs (if any), and other fees (if any) debited to the Card Account and/or the fee/amount exceeding the Credit limit prescribed in HDBank's Fee schedule issued in each period.
- 1.29. Undue outstanding principal refers to the outstanding principal the Cardholder is obligated to pay within the due committed/agreed with HDBank in the Contract or at the request of HDBank.
- 1.30. Overdue outstanding principal refers to the outstanding principal categorized as overdue debt when the Cardholder fails to fulfill the debt payment obligations agreed in the Contract, the outstanding principal the Cardholder fails to pay on time when HDBank implements regulations prescribed in Clause 13.3 Article 13 and Article 16 of these Terms and Conditions.
- 1.31. Overdue debt refers to the debt amount the Cardholder fails to pay or fully pay before due according to the Contract with HDBank and/or other agreements with HDBank (if any).
- 1.32. Due date refers to the latest day for the Cardholder to pay for the outstanding balance as prescribed by HDBank (before 4:30 PM of the same day).
- 1.33. Minimum payment amount refers to the amount the Cardholder must pay as notified in the statement by HDBank on Due date at the latest.
- 1.34. Line of Credit (abbreviated as "LOC") refers to the maximum amount HDBank allows the Cardholder to use in a specific time period (line of credit for both the Principal Cardholder and Supplementary Cardholder).
- 1.35. Card use limit refers to the amount the Cardholder can use within the line of credit and is in accordance with HDBank's regulations in each period.
- 1.36. Collateral refers to an escrow deposit, valuable papers, or other assets in compliance with HDBank's regulations in each period, used to secure the Cardholder's performance of financial obligations to HDBank. The reception and management of collaterals shall comply with HDBank's regulations in each period.
- 1.37. Securer refers to the individual or organization using their legally owned assets to secure the Cardholder's obligations to HDBank.
- 1.38. Automated Teller Machines (abbreviated as "ATM") refers to the devices using which the Cardholder can make transactions such as: cash deposit and withdrawal, goods and services fees payment, account inquiry, PIN change, card information lookup, and other transactions.
- 1.39. Domestic Card transaction system refers to the system consisting of HDBank System, Merchants, ATM systems of organizations connecting with HDBank (NAPAS, etc.).

- 1.40. International Card transaction system refers to the system consisting of HDBank System, Merchants, ATM systems of organizations connecting with HDBank (Visa, Mastercard, JCB, etc.).
- 1.41. Personal Identification Number (abbreviated as PIN) refers to the secret code first granted by HDBank then changed by the Cardholder by using a determined process to use in Card transactions. The Cardholder is responsible for the security of this secret code. In electronic transactions, the PIN is considered the Cardholder's signature.
- 1.42. Validity period/validity of the Card refers to the time period HDBank allows the Cardholder to use the Card and is printed on the Card.
- 1.43. “Card service fees” (hereinafter referred to as “fees”) refer to the fees to be paid by the Cardholder to HDBank when applying for, using, and making transactions with the Card. The rate and type of fee will be specified by HDBank in each period and detailed in the Card fee schedule.
- 1.44. Transaction vouchers related to the Card Account refer to any documents or invoices signed by the Cardholder, any Card transactions made with the PIN, or made according to the standards of the VCAs (NAPAS, etc.) confirming the Card transactions of the Cardholder.
- 1.45. Identity documents include one of the following: ID card, passport, or other valid documents accepted by HDBank to use in transactions with HDBank.
- 1.46. Chip Cards in EMV/VSSC standards (hereinafter referred to as “Chip Cards”) refer to the Cards with integrated circuit chips that act like multi-functional micro-computers that allow for encrypted data storage with high security.
- 1.47. HDBank Contactless Chip Cards refer to the Smart Cards with both “contact” and “contactless” technologies integrated into the same Card. These cards have a dual communication method, they can communicate by contact with card readers or contactless. The Cardholder can simply touch or wave the Card above the POS to make a Card transaction.
- 1.48. NCF POS refers to the card reading devices with NFC (Near Field Communication) technology, in addition to the basic POS features, the NFC POS can also read Contactless Cards and other NFC devices.
- 1.49. Contactless card transactions refer to the transactions made by touching or waving the HDBank contactless cards in close proximity to the NFC POS.
- 1.50. Online card transactions refer to the direct payment of goods and services by using cards on Merchants’ websites which are connected to the payment gateway of HDBank and/or HDBank’s partners.
- 1.51. Easy Payment transactions refer to transactions made by the contactless Cardholder to pay for goods and services via POS (with contactless technology) without needing to sign on the invoices with transaction amounts lower than a value determined by the ICA in each period.
- 1.52. Suspicious transactions refer to transactions with suspicious signs or there is evidence that the assets in the transactions are from illegal activities or connected to money laundering, in compliance with law regulations and regulations of the State Bank of Vietnam (SBV) in each period.

- 1.53. Fraudulent payment transactions at Merchants refer to the act of using the card or card information to pay for goods and services without any actual purchase of goods or services.
- 1.54. Fake cards refer to Cards that were not issued by HDBank but contain information of the real Primary Card and Principal Cardholder.
- 1.55. Fraudulent card transactions refer to transactions made using fake cards and transactions with illegal use of Cards or Card information.
- 1.56. International online card transaction authentication service (3D Secure) refers to a service provided to strengthen security for the Cardholder when making online card transactions on websites that are marked with Verified by Visa, MasterCard SecureCode, or JCB by authenticating the Cardholder with a password.
- 1.57. One Time Password (abbreviated as “OTP”) refers to the passwords that can only be used once and in a specific period. Depending on the OTP registration method, the Cardholder registers for OTP by using a device (OTP Token) or a password generator on a mobile device (Soft Token) of the Cardholder or HDBank sends the OTP via SMS/email (OTP SMS/OTP email) to the phone number/email registered with HDBank.
- 1.58. Working days are from Monday to Friday, excluding Saturdays, Sundays, and Tet holidays or other public holidays in compliance with regulations of HDBank and the law in each period.

ARTICLE 2. CARD LINE OF CREDIT

- 2.1. The LOC is decided by HDBank based on the regulations of HDBank in each period.
- 2.2. Annually, HDBank is fully entitled to (but not obligated to) automatically increase the LOC for the Cardholder, according to HDBank’s regulations in each period. HDBank shall notify the Cardholder of the increase in LOC using appropriate methods decided by HDBank. In the case HDBank automatically increases the LOC, within 05 working days of the date HDBank sends the notice, if the Cardholder continues to use the Card and/or HDBank does not receive any written response declining the increase from the Cardholder, the Cardholder is understood to have approved of the LOC increase.
- 2.3. Based on appropriate assessments of credit risks, the relevant financial situation of the Cardholder, and the use of the Card and Card Account gathered by HDBank, HDBank is fully entitled to consider decreasing the LOC at any time without prior notice to the Cardholder.
- 2.4. The Cardholder may request HDBank to consider adjusting (increasing/decreasing) the issued LOC by sending an application or by using other appropriate methods decided by HDBank. HDBank has the right to accept or refuse the LOC adjustment request of the Cardholder according to applicable regulations of HDBank.
- 2.5. Card transaction limit (including payment limit, domestic and overseas cash withdrawal, and other limits of Card use) will be implemented as prescribed in regulations of HDBank in each period and in accordance with law regulations.
- 2.6. For Cards that are issued and used electronically without HDBank’s application of advanced measures, the total transaction limit (including cash withdrawal, transfer, and payment) of the Credit Card of a Cardholder shall not exceed 100 (one hundred) million VND a month and the Cardholder is not allowed to withdraw foreign currency overseas or make international payment.

2.7. The advanced measures to identify and verify Cardholder information HDBank can apply include the following:

- a. HDBank uses the technology to inspect and compare the biometrics of the Cardholder with the citizen biometric data in the ID Card database; or
- b. HDBank uses video calls to gather, check, and verify Cardholder information during the Card issuance process to ensure that it is as secure and effective as the in-person approach. The video call method must meet the following requirements: ensure safety and security; high resolution; constant signal; real-time audio and visual interaction with the Cardholder to clearly identify the person; record the entire audio and visual or recordings in the Card issuance process for the Cardholder; or
- c. HDBank identifies and verifies Cardholder information by meeting the Cardholder in person.

ARTICLE 3. LINE OF CREDIT SCOPE OF USE, USE PURPOSE, AND EXTENSION PERIOD

- 3.1. Scope of use: The Card can be used within the territory of Vietnam and/or outside the territory of Vietnam. The scope of use of the card issued to the Cardholder is based on the type of Credit Card requested by the Customer and approved by HDBank according to the Contract and according to HDBank's regulations in each period.
- 3.2. LOC use purpose: Consumer uses. The Cardholder commits not to use the LOC for illegal purposes or against HDBank regulations.
- 3.3. LOC extension period: 3 years or in compliance with regulations of HDBank in each period. HDBank extends the LOC, assesses, and adjusts the LOC (if necessary) in accordance with regulations of HDBank in each period.

ARTICLE 4. CURRENCY USED IN TRANSACTION - INTEREST - SERVICE FEES

4.1. The currency used in Card transactions

- a. On the territory of Vietnam:
 - i. The cash withdrawal transactions done with a Card must be made using VND.
 - ii. For other Card transactions:
 - Currency used in transactions is VND. If a foreign currency is allowed to be used for transactions in accordance with law regulations on foreign exchange management, the currency represented in the transaction must be VND or VND and foreign currency;
 - The payment currency is VND. The Merchants can only accept payments in VND from Acquirers;
 - iii. If it is necessary to exchange from a foreign currency to VND, the exchange rate from a foreign currency to VND is determined by HDBank or the ICAs.
- b. Outside the territory of Vietnam: When making Card transactions outside the territory of Vietnam, the Cardholder must pay HDBank using VND with the exchange rate to VND prescribed by HDBank or the ICA, in accordance with regulations of the State Bank of Vietnam.

4.2. Interest rate: applied according to the Credit Card interest rate schedule prescribed by HDBank in each period and publicly listed.

4.3. Interest calculation method

- a. Interest calculation method: The Interest term starts from the day the Cardholder makes the transaction which gives rise to the outstanding balance to the day preceding the day the Cardholder fully pays off the outstanding balance (calculating the first day, omitting the last day of the Interest term) according to the Contract between the Cardholder and HDBank. Interest is calculated based on the following formula:

$$\text{Interest} = \frac{\text{Outstanding balance} \times \text{Applicable interest rate (\%/year)} \times \text{Interest}}{365}$$

In which:

- Outstanding principal for interest calculation: the Undue outstanding principal and/or Overdue outstanding principal (if any).
 - Interest rate: exchanged based on the %/year ratio, according to the Card interest rate schedule prescribed by HDBank in each period.
 - Interest days: corresponds to each type of transaction as prescribed in points b and c of Clause 4.3. of this Article.
 - Interest rate: including adjusted rates in each period (if any) are annual interest rates that correspond to the applicable interest rate according to the interest calculation method with the interest term starting from the day following the disbursement date to the end of the day the Cardholder fully pays off the outstanding balance (omitting the first day and calculating the last day of the interest term) and the actual balance used for interest calculation is the interest term opening balance of the principal outstanding balance, an overdue principal outstanding balance that the Cardholder still has to pay to HDBank.
- b. Cash withdrawal transactions: interest will be calculated from the date of the cash withdrawal transaction to the end of the preceding day (regardless of the Statement date and the Payment due date) of the date the Cardholder pays back. In the case the Cardholder fails to settle the Outstanding balance or fully settle the Outstanding balance in the Statement period (including interest and fees), the remaining Outstanding balance will continue to be used to calculate interest until the Cardholder fully settles the amount as shown on the Statement of the next periods.
- c. Goods and services payment transactions:
- i. In the case the Cardholder does not have an Outstanding opening balance and on the payment date at the latest, if the Cardholder pays the entire Outstanding balance at the end of the period as stated on the Card statement, HDBank will offer interest-free incentives for the entire Outstanding balance of transactions arising in that Statement period of the Cardholder.
 - ii. In the case the Cardholder has Outstanding opening balance or at the latest on the payment due date, if the Cardholder fails to pay or fully pay the Outstanding closing balance (including the case of only paying the minimum amount according to the statement), HDBank will calculate interest on all transactions from the date of recording the transaction into HDBank's Card management system until the end of the day preceding the date on which the Cardholder pays the debt, the remaining Outstanding balance will continue to be used to calculate interest and will be shown on the next Statement period.

- d. Overdue interest rate: In the case the Card debt is transferred to overdue debt, the Cardholder must pay interest on the overdue principal balance corresponding to the period of late payment and the applicable interest rate according to HDBank's regulations in each period but not exceeding 150% of the undue loan interest rate. Applicable to the overdue principal at the time of transferring to overdue debt.
 - e. Interest late payment interest rate: applicable to the overdue interest amount with the interest rate $\geq 10\%$ /year calculated based on the overdue interest amount corresponding to the late payment time or in compliance with HDBank's regulations in each period, based on regulations from the SBV.
- 4.4. Service fees: Based on the services the Cardholder applied for and used, HDBank is entitled to debit and collect fees according to the Credit Card service fee schedule issued by HDBank in each period. The time between the notice and the application of the adjusted fees is 07 (seven) days minimum.
- 4.5. Card interest rate and the Card service fee schedule are prescribed in detail in the Card interest rate schedule and the Card service fee schedule (subject to adjustments according to regulations of HDBank in each period). The Cardholder accepts that HDBank is entitled to adjust the Card interest rate schedule and the Card service fee schedule, which will be notified to the Cardholder using one of the following methods: via SMS messages, registered email, mainstream media platforms, HDBank official website, or other methods in accordance with law regulations in each period. In case the Cardholder does not agree with the adjustment, the Cardholder must contact HDBank to request HDBank to terminate Card use and implement procedures for Card settlement.

ARTICLE 5. COLLATERAL

- 5.1. HDBank agrees to issue a Card to the Cardholder in two cases:
- a. No collateral or not secured by other security interests; and/or
 - b. Secured by collateral or a security interest.
- 5.2. Details on security interests, collateral, security obligations, rights and obligations of the Parties, handling methods, and other issues regarding the collateral will be prescribed in the Security contract/agreement/document between HDBank and the Cardholder or between HDBank and a Third Party to secure the Cardholder's obligations.
- 5.3. The release of collateral / termination of security interest: 45 (forty-five) days for International Cards and 30 (thirty) days for Domestic Cards after the date the Cardholder fulfills all obligations to HDBank, and all complaints and disputes related to the use of the Card have been resolved.
- 5.4. HDBank has the right to request the Cardholder to provide additional collateral or security interests for the LOC in one of the following cases:
- a. If deemed necessary by HDBank, the Cardholder (Card issuance without collateral) will be requested to provide collateral or security interests to secure the Cardholder's obligations when using the Card.
 - b. The value of the collateral/security interest registered to secure the Cardholder's obligations is not sufficient to pay for the Outstanding balance of the Cardholder to HDBank;
 - c. The Securer (not the Cardholder) fails to fulfill security obligations or cooperate with HDBank in collateral handling;

- d. Based on HDBank's evaluation, the value of the collateral/security interest has decreased;
- e. Other cases in which the Securer's ability to fulfill security obligations or the ability to handle the collateral to pay for the Outstanding balance of the Cardholder have been affected as evaluated by HDBank; or
- f. Other cases as prescribed in regulations of HDBank and the law.

ARTICLE 6. RIGHTS AND OBLIGATIONS OF THE CARDHOLDERS

6.1. Rights of the Cardholders

- a. Right to use the Card to make Card transactions according to law regulations.
- b. The Principal Cardholder has the right to request HDBank to issue Supplementary Cards and/or terminate the use of Supplementary Cards.
- c. Right to inquire and make complaints to HDBank when using the services related to the Card Account if there is proof that the Cardholder's legal rights and benefits have been violated. The prescriptive period for complaints is 60 (sixty) days from the date of the inquiry or complaint arising.
- d. Right to request HDBank to issue a new PIN.
- e. Right to request HDBank to re-issue a new Card as prescribed in these Terms and Conditions.
- f. Right to receive the Card Statement monthly or according to HDBank's regulations in each period.
- g. The LOC is approved by HDBank to issue to the Principal Cardholder. The Supplementary Cardholder(s) are only allowed to spend within the LOC issued by HDBank to the Principal Cardholder.
- h. Right to accept or refuse to receive notifications, warnings, news, advertisements, promotions, etc. using the registration/confirmation method provided by HDBank. The Cardholder is fully responsible for all the risks that may occur when refusing to receive information from HDBank.
- i. Right to request HDBank to return the credit balance in the Card Account after fulfilling all debt payment obligations to HDBank (including Card debt, credit extension debt, or other financial obligations).
- j. Other rights as prescribed in these Terms and Conditions, agreements with HDBank, or law regulations.

6.2. Obligations of the Cardholders:

- a. The Principal Cardholder and/or Supplementary Cardholder(s) are responsible for paying HDBank for all the Card transactions made using the Cardholder's Card, even when the signature of the Principal Cardholder and/or Supplementary Cardholder(s) is not on the transaction invoices. In case the Principal Cardholder fails to pay the Outstanding balance, the Supplementary Cardholder(s) are responsible for paying the entire Outstanding balance and vice versa. The Principal Cardholder and Supplementary Cardholder(s) commit to complying with these Terms and Conditions and other relevant regulations of HDBank. The invalidity or unenforceability or release of the Principal Cardholder's liability will not release the liability of the Supplementary Cardholder(s) and vice versa. When the Principal Cardholder terminates the use of the Card, the

- Cardholder is responsible for paying the entire outstanding balance and returning all Cards (including Primary and Supplementary Cards (if any)) to HDBank.
- b. Allow HDBank to provide information about the Cardholder(s), information related to the Card, and Card usage to third parties for the purpose of deploying HDBank's services and products, to comply with law regulations, or at the request of the competent authority.
 - c. Be responsible for preserving the Card, keeping the PIN confidential and not transferring the Card or giving the Card to others to use.
 - d. The Cardholder is responsible for presenting a valid Card during Card transactions.
 - e. Sign the sample signature in the signature box on the back of the Card immediately after receiving the Card.
 - f. Each time the Card is used to withdraw cash or pay for goods and services, the Cardholder must sign a payment invoice with a signature similar to that on the Card, except for transactions made by mail order, telephone, Internet or other forms of payment approved by HDBank without requiring the Cardholder's signature.
 - g. As soon as the Card is identified to have the PIN number, OTP code, information on the Card compromised, the Card is lost/stolen or suspected of being misused, the Cardholder is responsible for following the reporting regulations when the PIN number, OTP code, information on the Card is compromised, the Card is lost/stolen or suspected of being misused and follow the process and procedures in Clause 9.5, Article 9 of these Terms and Conditions.
 - h. Be responsible for all transactions with the Card that were performed before HDBank received notice of the Card being stolen, lost or the unauthorized use of the Card and/or information on the Card, including but not limited to fraudulent transactions and/or forged signatures by any other third party; or in case the Card transaction is made after the bank advises to lock the Card/change the PIN/reissue the Card but the Cardholder does not agree to do so or has not yet done so.
 - i. In case, after notifying HDBank, the Cardholder finds the lost/stolen Card, the Cardholder is not allowed to reuse the Card and must go through issuance procedures for a new Card.
 - ii. In case the Card has its PIN exposed or is suspected of being exploited, the Cardholder must go directly to HDBank to request a new PIN.
 - i. Be responsible for all damages arising (if any) for Card transactions made due to the Cardholder's errors or due to the Cardholder's failure to properly perform the obligations under this Contract of Credit Card issuance and use (including Principal Cardholder and Supplementary Cardholder). In case the Card is misused and causes damage, HDBank and the Cardholder will handle it according to the provisions of law and HDBank's regulations.
 - j. Bear all losses, damages, and responsibilities arising for transactions that have been previously notified by HDBank as a warning but the Cardholder still decides to perform or does not agree or does not lock the Card, including but not limited to cases of fraud, forgery, etc.
 - k. Responsible for the periodic payment transactions that the Cardholder has registered to use from the time of registration to the time the Cardholder requests to terminate/stop/cancel registration and is confirmed by HDBank.

- l. Take full responsibility for all risks, disputes, and damages arising related to transactions with the Cardholder's signature and/or use of PIN; transactions made via Chip Cards, Contactless Cards and online spending transactions using the 3D Secured Service. At the same time, bear similar responsibility for other transactions if HDBank can provide evidence that the Cardholder used the Card to perform the transaction without providing the signature.
- m. The Cardholder acknowledges, irrevocably commits, and is responsible for paying all transactions that the Cardholder has performed in accordance with HDBank's regulations on the card payment process via the Internet and/or using the Cardholder's signature or electronic signature without canceling, denying, refusing, changing or repudiating the transaction for any reason; and commit to bear all risks related to the transaction that has been performed.
- n. Bear all financial losses for Card transactions made via the Contactless Card. When terminating/stopping/canceling the Card service for periodic payment transactions (monthly, quarterly), the Cardholder must keep evidence of canceling this service.
- o. Immediately notify HDBank in writing of any changes in the Cardholder's home address, permanent address, contact address or change in occupation.
- p. Immediately notify HDBank in writing of the change (or cancellation) of email and phone number used by the Cardholder to receive services. The cardholder will be responsible for any damages arising from failure to provide information or delay in providing information.
- q. Be responsible for cooperating and accurately providing all necessary information as requested by HDBank/Card issuance partner and other authorized organizations and individuals as prescribed by law regulations when requesting Card issuance and during Card use. The Cardholder must be responsible for the truthfulness of the information they provide.
- r. Be responsible for providing additional collateral or establishing other security interests in accordance with these Terms and Conditions.
- s. Be responsible for paying on time the full minimum payment amount according to the monthly Card Statement and/or outstanding balance for all Card transactions performed in accordance with these Terms and Conditions.
- t. Commit not to use the Card Account to make illegal transactions, fraudulent transactions, fake transactions, or false transactions at Merchants (not giving rise to the purchase and sale of goods and provision of services).
- u. Supplementary Cardholder(s) commit not to complain or sue HDBank in case HDBank has to lock the Supplementary Cards at the request of the Principal Cardholder.
- v. Take all responsibilities related to Card transactions successfully completed and debited to the Card Account (including but not limited to: Online Card transactions using the 3D Secured Service, Card transactions with/without entering PIN, etc.)
- w. Cooperate with HDBank in the process of investigating fraudulent transactions related to the Card Account by providing information related to the Card Account, identification information, information related to Card use, information about the Cardholder's relatives, etc. as required by HDBank.
- x. In case the Cardholder requests HDBank to support transactions (confirm Card status, transaction information, available LOC, etc.) or request HDBank to perform support

operations (Card lock, Card activation, etc.) by calling HDBank's 24/7 Customer Service Hotline (Telephone Hotline) 1900 60 60 or by directly going to the nearest Branch/Transaction Office, the Cardholder agrees that:

- i. The Cardholder's identification information is identified by HDBank through the Cardholder's phone number registered with HDBank and identification questions according to HDBank's regulations in each period.
- ii. Depending on HDBank's assessment based on the identification information provided by the Cardholder and in order to limit risks for the Cardholder, HDBank has the right to decide whether or not to implement transaction support and support operations for the Cardholder via phone.
- iii. The Cardholder accepts the risks arising related to the Card/Card Account due to HDBank's identification, transaction support, or implementation of support operations according to the above regulations.
- y. Be responsible for resolving arising issues related to the quality of goods and services with Merchants and agree that this does not affect the Cardholder's payment obligations on the payment due date to HDBank.
- z. The Cardholder commits to making transactions using the Card abroad for the right purpose and with the right Card according to foreign exchange management regulations, anti-money laundering regulations and law regulations of Vietnam.
- aa. The Cardholder agrees that in case the Cardholder confirms through means and tools provided by HDBank (such as email, SMS, etc.) or the Cardholder actively registers/uses the Card, products, and services of HDBank through these means and tools and accepted by HDBank, the Cardholder's responsibilities and obligations in confirming/requesting/registering/using that Card, products and services will be binding, including but not limited to issuing Supplementary Cards, adjusting Card limits, and other requirements during the Card issuance and use process.
- bb. The Cardholder allows HDBank to provide the Cardholder's information, including but not limited to the Cardholder's personal information, to HDBank's partners to deploy products and services for the Cardholder and implement debt collection, trading, and handling without prior consent or notice to the Cardholder. To clarify, the Cardholder also agrees to let these partners provide information to relevant personnel to perform tasks according to the provisions of point aa, Clause 6.2, Article 6.
- cc. The cardholder agrees to receive messages, calls, letters, emails related to products and services provided by HDBank or third parties such as telecommunications companies/information technology companies, etc. via the phone number and email that the Cardholder has provided to HDBank.
- dd. Comply with law regulations on anti-money laundering, anti-terrorism financing, and embargoes. If any transactions of the account are blocked, frozen, delayed, delayed, or canceled due to violations of these regulations, the Cardholder is fully responsible for the losses and legal obligations, penalties, fines, costs, or expenses incurred, and at the same time reimburse HDBank for financial obligations that HDBank may have to perform due to these violations.
- ee. The Cardholder agrees that if due to force majeure events, system maintenance, or other objective reasons, HDBank's telephone hotline cannot operate or receive information from the Cardholder, the Cardholder shall make inquiries/complaints at HDBank transaction points. The Cardholder agrees not to make any complaints and exempts

HDBank from related responsibilities in case the Cardholder cannot check or complain about the Card via the telephone hotline.

- ff. Other obligations according to these Terms and Conditions, agreements/commitments with HDBank, or law regulations.

ARTICLE 7. RIGHTS AND OBLIGATIONS OF HDBANK

7.1. Rights of HDBank:

- a. HDBank is exempt from liability in case the processing system, communication system, etc. malfunctions or for any reason beyond HDBank's control.
- b. Right to collect debt and handle collateral to collect debt using the methods determined by HDBank without consent from the Cardholder (including valuation of collateral for handling). In case the Cardholder does not pay HDBank on time, HDBank has the right to deduct money from the Cardholder's payment account/deposit account at HDBank and handle other assets of the Cardholder to pay outstanding debts. HDBank has the right to act on behalf of the Cardholder to prepare and sign any/all documents and take any necessary actions to collect the Cardholder's debt according to HDBank's regulations.
- c. HDBank and the Merchants have the right to check the Cardholder's signature and identification documents when the Cardholder performs Card transactions.
- d. Right to collect information about the Cardholder from other individuals and organizations when requesting Card issuance; and has the right to decline unreasonable requests from the Cardholder.
- e. Right to decide to collect debt from the Principal Cardholder or any Supplementary Cardholder or both.
- f. In some special cases (including but not limited to the following cases: Fake Cards, Cards suspected of fraudulent transactions, etc.), in order to promptly support and ensure safety for the Card/Cardholder, HDBank has the right to decide to limit some of the Card's utilities (Card lock or online payment lock) or apply other measures according to HDBank regulations.
- g. Right to take necessary measures without prior notice to the Cardholder (including but not limited to: blocking/temporarily locking/blocking Card transactions, declining Card transactions, locking Cards, suspending/preventing/terminating/blocking the use of the Card, etc.) when one of the following cases occurs:
 - i. The Cardholder fails to come to receive the Card within the time limit HDBank notified the Cardholder;
 - ii. A transaction not performed by the Cardholder is detected;
 - iii. Suspected or detected fraudulent or counterfeit transactions;
 - iv. The Card is damaged and information cannot be retrieved due to the Cardholder's failure to properly store the Card;
 - v. The Cardholder does not comply with HDBank's regulations when using the Card;
 - vi. The Cardholder violates any obligations at HDBank, including but not limited to loan payment obligations, guarantee payment obligations, Card payment obligations, third party security obligations, etc.
 - vii. The Cardholder uses the Card to make transactions prohibited by the law;
 - viii. The Card is used illegally;

- ix. In accordance with regulations of Card Associations;
- x. After 60 days from the payment due date, the Cardholder fails to pay or only pays an amount smaller than the minimum payment value;
- xi. The Cardholder has spent more than the credit limit without HDBank's permission;
- xii. The Card has been notified by the Cardholder as lost, the Card information, PIN and/or OTP, or other information of the Card and the Cardholder has been exposed;
- xiii. The Card is expired;
- xiv. HDBank detected risks, incorrect identification information, or unusual signs during the process of issuing or using Cards issued electronically;
- xv. To prevent damage to HDBank and/or Cardholders;
- xvi. To support investigations, requests from competent state agencies, or law regulations, or

Any of the above cases applied in practice will not affect the Cardholder's other obligations to HDBank and other rights of HDBank specified in these Terms and Conditions or in law regulations.

- h. HDBank is entitled to use any transaction documents related to the Card Account as authentic evidence to prove that the Card transactions are performed by the Cardholders themselves.
- i. HDBank has the right to be exempt from and not bear any responsibility related to transactions between Cardholders and third parties (suppliers, Merchants, etc.) when using the Card for payment, including but not limited to delivery, quality of services/goods, etc. The dispute between the Cardholder and the above third parties does not affect the performance of the Cardholder's obligations as required by HDBank.
- j. In case a Card transaction requires the exact PIN number, OTP code, personal information, and information on the Card, the Cardholder only needs to: enter the correct PIN number/OTP code/personal information/information on the Card for HDBank to determine that these are valid Card transactions performed by the Cardholder. For Card transactions that do not require PIN, OTP code, personal information, or information on the Card, the Card only needs to be used for HDBank to determine that these are valid Card transactions performed by the Cardholder.
- k. Right to refuse the Cardholder's complaints for all Card transactions with a value of less than 10 US dollars (USD) or equivalent. For travel and recreational purposes (T&E – Travel & Entertainment), HDBank has the right to refuse the Cardholder's complaints for all Card transactions with a value of less than 25 USD or equivalent made with Merchants providing these services as prescribed by the ICAs (e.g. aviation, vehicle rental, ship and train tickets, hotels, motels, restaurants, travel agencies, etc.).
- l. In all cases, HDBank has the right to approve or refuse to perform Card transactions of the Cardholder regardless of the LOC issued to the Cardholder to ensure the legitimate rights and interests of HDBank and/or the Cardholder.
- m. Debit/credit the amount of Card transactions automatically recorded to the Card Account from the Card Associations' system, without the Cardholder's consent or Card security information being stolen, exploited or other arising cases that the Cardholder does not notify HDBank to lock the Card.

- n. Freeze the amount of money on the Card Account or temporarily postpone crediting money to the Card Account when there is a suspicious transaction or suspicion of a credit transaction being erroneous or invalid, etc. as assessed by HDBank, to ensure the safety of the Cardholder's Card Account.
- o. Freeze the transaction amount and transaction fee in advance when the transaction has been approved by HDBank but has not yet been debited from the Card Account.
- p. HDBank does not bear any responsibility to the Cardholders for transactions made with the Card, damages, or losses in the following cases:
 - i. Merchants declining the Card for reasons not due to HDBank's fault.
 - ii. Malfunctions, shortcomings, failures of ATM systems of other banks and machines in the systems of the Merchants.
 - iii. HDBank declines Card transactions in compliance with the provisions of these Terms and Conditions.
 - iv. HDBank delays or fails to perform its responsibilities under these Terms and Conditions due to natural disasters, weather changes, fires, electrical incidents, telecommunications incidents, mechanical problems, handling data management; or any situation beyond HDBank's control or as a result of fraud or forgery.
 - v. Cardholder's fault during use of the Card and/or Cardholder's violation of these Terms and Conditions for any reason.
 - vi. Cases prescribed in Clause 13.1 Article 13 of these Terms and Conditions.
 - vii. Transactions with the Cardholder's signature and/or PIN; transactions made via Chip Cards, transactions made via Contactless Cards and online payment transactions using 3D Secured service.
 - viii. Transactions in which HDBank provides evidence that the Cardholder has performed the transaction without a signature.
 - ix. Cardholder's risks related to payment for goods and services via the internet and online transactions.
 - x. Any action or inaction of a third party (other than a representative of HDBank) that leads to HDBank's services not being provided or are provided incompletely to the Cardholder.
 - xi. Any loss to the Cardholder's honor and reputation when revoking the Card or stopping the use of the Card or terminating the use of the Card or debt recovery.
 - xii. In case the Card is not secured or the PIN is exposed or due to the Cardholder's negligence, the PIN is stolen.
- q. Fulfill requests related to Card usage requested by the Cardholder at the transaction counter/on HDBank's electronic channels and by phone.
- r. HDBank has the right to record telephone conversations/transactions between HDBank and the Cardholder to document requests related to Card operations from the Cardholder; at the same time, it will be evidence of dispute resolution between the parties (if any).
- s. In case the Cardholder's LOC is in one currency, the amount deducted to perform the transaction is another currency and the exchange rate in this case is decided by HDBank in accordance with law regulations.

- t. File a lawsuit against the Cardholder and/or the Securer in accordance with regulations of the law if the Cardholder and/or the Securer breaches the committed obligations;
- u. HDBank has the right (but not the obligation) to convert Magnetic Cards to Contactless Cards for Cardholders. In case of converting/replacing Cards/re-issuing magnetic cards to Contactless Cards, the Cardholder must request to simultaneously convert the valid Primary Card and Supplementary Cards (if any) and the Cardholder needs to request HDBank to carry out the procedure to issue a new Card number using Chip Card technology.
- v. HDBank automatically registers 3D Secured Service for new/renewed/replaced Cards (that have not previously registered for 3D Secured Service) using the mobile phone number/email that the Cardholder has registered with HDBank. By signing the "Application cum Contract for opening and using payment account/products - services" and/or other Forms prescribed by HDBank in each period, the Cardholder has agreed that HDBank automatically registers and applies 3D Secured service fees (if any), etc.
- w. When the request to deliver the Card/PIN of the Cardholder is approved by HDBank, HDBank may deliver the Cardholder the Card/PIN, and then the renewal or replacement Cards, by regular post to the address the Cardholder registered with HDBank.
- x. Decline service requests and licensing requests from the Cardholder if the request does not comply with HDBank's conditions and regulations or the circumstances are beyond HDBank's control.
- y. If the Card incurs more than 15 (fifteen) transactions that are claimed by the Cardholder to be cases of forgery/fraud (for MasterCard cards and JCB cards) or more than 35 (thirty-five) transactions (for Visa cards) or exceed the number of transactions prescribed by the ICAs in each period (regardless of the Merchant and the time of card use), HDBank has the right to refuse to process these forgery/fraudulent complaints.
- z. HDBank has the right to decline inquiries and complaints regarding transactions assessed by the Cardholder showing signs or acts of profiteering during the process of using the Card or the Cardholder providing Card information, PIN, or OTP to a third party to perform Card transactions.
- aa. HDBank has the right to proactively send information about notices, warnings, media news, advertisements, promotions, etc. when the Cardholder confirms his/her consent to receive information through the registration/confirmation methods that HDBank provides (such as Credit Card Application, etc.) or other notification methods of HDBank applied in each period. HDBank's information is considered sent to the Cardholder when: The information has been successfully sent to the Cardholder's mobile phone number when the device reports successful delivery, sent to the Cardholder's permanent/temporary address/email, posted on HDBank's website, and displayed on the features when the Cardholder uses the Card.
- bb. HDBank has the right to provide information about the Cardholder(s), information related to the Card, and Card usage to third parties for the purpose of deploying HDBank's services and products, to comply with law regulations, or at the request of the competent State Agency.
- cc. HDBank has no obligation to provide transaction invoices for Easy Payment transactions.
- dd. Transfer or delegate rights under the Contract and under security contracts to a Third Party without the consent of the Cardholder and/or Securer.

- ee. Other rights as prescribed in these Terms and Conditions, agreements between the Cardholders and HDBank, regulations of HDBank and of the law.

7.2. Obligations of HDBank

- a. HDBank shall receive Cardholder reconciliation and complaints through the Hotline (available 24/7 and recorded) and transaction points (business units) of HDBank. HDBank shall also process or respond to reconciliation requests and complaints from the Cardholder related to Card use as prescribed below:

i. Processing time

	ATM		POS/ ECOM	POS/ ECOM
	In-network	Out-of-network	In-network	Out-of-network
International Credit Card	05 working days maximum	60 working days maximum	10 working days maximum	60 working days maximum
Domestic Credit Card		07 working days maximum		12 working days maximum
The time for receiving the 2nd complaint from the date HDBank sends the response to the 1st reconciliation: 05 working days maximum.				
Response time from the date of receiving the 2nd reconciliation or complaint: within the specified timeframe below. However, depending on each specific case, HDBank may negotiate the processing time with the Cardholder, ensuring compliance with regulations of the law and International Card Associations.				
International Credit Card	10 working days maximum	Depending on each case, 180 working days maximum.	12 working days maximum	Depending on each case, 180 working days maximum.
Domestic Credit Card		10 working days maximum	12 working days maximum	

The processing and notification time of the results mentioned above is calculated from the date of receiving the Cardholder's 1st reconciliation request or complaint. In cases where signs of criminal activity are suspected, the timeframe for processing and notification of reconciliation or complaint results to the Cardholder shall be subject to the resolution timeframe of the competent State authority.

In the event that the 2nd reconciliation and complaint request deadline, as stipulated in Clause 7.2 of this Article, has passed without determining the underlying cause or the party at fault, within the next 15 (fifteen) business days, HDBank shall discuss with the Cardholder a resolution plan until a final conclusion is reached by the competent authority, determining the fault and responsibilities of the parties involved.

- ii. In cases where there are signs of criminal activity, HDBank shall notify the competent state authorities in accordance with the legal provisions on criminal proceedings and report to the State Bank of Vietnam. HDBank shall also provide written notice to the Cardholder regarding the request for reconciliation and complaint processing status. The handling of inquiry and complaint results shall then fall into the responsibility of competent state agencies. In the event that the competent state authority notifies the result that there are no elements of crime involved, within 15 (fifteen) working days from the date the conclusion is made, HDBank shall discuss with the Cardholder the course of action for handling the results of the request for reconciliation/complaint.

- iii. In case HDBank, the Cardholder, and any related parties cannot reach an agreement and/or do not agree with the resolution process for the reconciliation request and complaint, the dispute shall be resolved in accordance with the law.
- b. Obligated to lock the Card upon receiving notification from the Cardholder when the Card's PIN is compromised or the Card is lost/stolen, or suspected of misuse, provided that the Cardholder provides accurate information as requested by HDBank related to the Card account. Terminate the use of the Card or lock supplementary Cards as per the Cardholder's request.
- c. Have the responsibility to advise and assist the Cardholder in urgent cases related to the use of the Card account, except for requests beyond HDBank's capabilities (such as incidents caused by the Cardholder's own mistakes during transactions, incidents caused by third parties unrelated to HDBank, or other unreasonable requests of the Cardholder).
- d. The Cardholder will receive/ be refunded the remaining amount (balance) if the Cardholder has not used the full amount on the Card at the time of Card termination. The Cardholder may receive the remaining amount of the Card directly at the HDBank transaction points, following HDBank procedures for over-the-counter transactions in each period.

Specifically, HDBank shall refund the remaining balance on the Card (if any) to the Cardholder, after deducting all fees, charges, and payment obligations owed by the Cardholder to HDBank. The refund will be made to the Cardholder's current account at HDBank or by cash, as specified in the Cardholder's written request. Within a period of 06 (six) months from the termination of Card use, if the Cardholder does not make the request or provide their current account information for the transfer of the remaining balance on the Card, HDBank shall have full authority to handle the remaining amount, including accounting for it as HDBank's property.
- e. Other obligations as per these Terms and Conditions, the agreements between HDBank and the Cardholder, regulations of HDBank, and provisions of the law.

ARTICLE 8. EXCHANGE RATE

- 8.1. The exchange rate applied to all Card transactions converted from foreign currency into VND at the time the Card transaction is debited/credited to the Card account is regulated by HDBank or the ICA.
- 8.2. In case the currency used to determine the value of collateral/other secured obligations is different from the currency in which HDBank grants the LOC to the Cardholder if changes in foreign exchange rates/gold prices lead to the LOC exceeding the value of the collateral or the value of the guaranteed obligation or exceeding the maximum ratio agreed upon by HDBank and the Cardholder/Guarantor, HDBank reserves the right to take the following measures:
 - a. Reduce the LOC issued to the Cardholder to an amount corresponding to the value of collateral or of the guaranteed obligation agreed upon in the security contract/guarantee commitment between the parties; or
 - b. Request the Cardholder to supplement collateral or other security measures; or
 - c. Terminate the Cardholder's Card use.
- 8.3. In case the Cardholder uses collateral to offset the outstanding Card balance and the collateral is deposit amount or savings account passbook, etc. is in a foreign currency other than VND, HDBank has the right to convert at the exchange rate/interest rate determined

by HDBank on the date of request. At the time of making the request, for the balance of the term deposit account and savings account, the applicable interest rate is the corresponding premature/term interest rate.

- 8.4. The application of the foreign currency exchange rate/gold exchange rate to determine the LTV ratio is at the discretion of HDBank

ARTICLE 9. CARD MANAGEMENT, CARD RELATED INFORMATION, PASSWORD, AND PIN

- 9.1. The Cardholder agrees that the Card and PIN shall be, at HDBank's discretion, delivered to the Cardholder via any delivery manners that HDBank deems safe and reliable. The Cardholder is deemed to have received the Card and PIN when HDBank delivers the Card and PIN following the information receipt address informed by the Cardholder to HDBank, and the Cardholder signs the acknowledgment of Card and/or PIN receipt¹ in the document specified by HDBank for each delivery method.
- 9.2. In cases where HDBank directly delivers the Card/PIN to the Cardholder at a specific address, HDBank shall identify the Cardholder through certain personal information provided by the Cardholder and the information on the Card that the Cardholder has registered with HDBank in accordance with HDBank's regulations. HDBank is exempted from any liability in the delivery of the Card/PIN to the Cardholder when the Cardholder identification information received is accurate, complete, and matches with the information held by HDBank.
- 9.3. If the Cardholder does not receive the Card/PIN from HDBank, the Cardholder should contact HDBank to receive the Card/PIN within 30 days from the date the Card/PIN is issued as notified by HDBank. After this period, HDBank will process the unreceived Cards/PINs according to the Card/PIN inventory processing procedure. If the Cardholder wishes to receive a new Card/PIN, the Cardholder will be subject to relevant fees in accordance with HDBank's regulations.
- 9.4. The Cardholder is required to change the PIN provided by HDBank at an HDBank ATM before making any transactions. The Cardholder is not permitted to conduct Card transactions using the initial PIN provided by HDBank.
- 9.5. The Cardholder is responsible for managing the Card and securing the PIN, OTP, Card information, and other confidential information associated with the Card, whether or not the Cardholder intends to activate the Card. In case the Card/information associated with the Card/password/PIN/OTP is lost/stolen/misused by others without consent from the Cardholder, the Cardholder must:
- Immediately notify HDBank by calling HDBank Customer Service hotline at 1900 60 60 and visit the nearest Branch/TO to confirm this notice with HDBank in writing.
 - Provide information about the time and location where the Card was reported missing, information related to the compromised Card/password/PIN, most recent transactions, and any other information as requested by HDBank.
- 9.6. The Cardholder is responsible for every Card transaction, any loss or damages, as well as compensation to HDBank and/or third parties (if any) for any Card transactions:

¹ For ePIN: it is not required to sign a confirmation document but to follow the HDBank's regulations in each period.

- a. resulting from fraud or violation of any of the agreed-upon Terms and Conditions with HDBank during the use of the Card, or due to negligence in Card management and usage, even if the Cardholder allows a third party to use the Card, PIN, or OTP;
 - b. made using the compromised Card before HDBank provides written confirmation of accepting the report of loss, theft, or the unauthorized use of the Card or Card information, including but not limited to: Card transactions resulting from fraud and/or forged signatures.
 - c. The Cardholder fails to notify HDBank, as stipulated in this Article, immediately upon the loss of the Card, disclosure of PIN, OTP, or Card information, or any other related security issues that occur.
- 9.7. In the event of the Card being lost/stolen/retained at an ATM of another bank/at a merchant, the Cardholder must promptly notify and request a Card replacement (if needed) in writing to HDBank. HDBank will consider and decide on the Card reissuance. Upon reissuance, the Cardholder is obligated to pay the lost Card fee (if any) and any related charges based on the fee schedule issued by HDBank in writing, in compliance with the law, and updated on HDBank's website in each period. If the lost/stolen Card is found or recovered after the Cardholder has notified HDBank, the Cardholder shall not use the recovered Card and must take measures to deactivate the Card in order to prevent its use. Upon a Card replacement, the Cardholder will be issued a new PIN, and the Cardholder must change the PIN to ensure security when using the Card.
- 9.8. HDBank may terminate the Card for any reason, including but not limited to compliance with legal requirements of competent State authorities, technical or professional requirements, etc. The Card shall terminate from the moment HDBank notifies the Cardholder of the Card termination. In case where the Cardholder continues to use the new Card, the Cardholder must comply with HDBank's regulations.

ARTICLE 10. CREDIT CARD STATEMENT

- 10.1. Each month, the Cardholder receives a credit Card statement (issued by HDBank on a fixed date of each month), which details the transactions, fees, accrued interest from the previous billing cycle, any adjustment entries (if any), total outstanding balance, paid amount, beginning balance, ending balance, minimum payment amount, minimum payment due date, and other relevant information as per HDBank's regulations.
- 10.2. The Card statement shall be the proof that the transactions, fees, interests (if any), and debit and credit in the Card statement are true and in effect, the Cardholder is responsible for paying all transactions, fees, and interest shown on the Card statement according to the due specified in the Card statement.
- 10.3. The Card statement will be sent to the Cardholder via electronic channels of HDBank, SMS, and email registered by the Cardholder with HDBank. For cases where the Cardholder requests to receive monthly credit Card statements in paper format through postal mail, HDBank will charge a fee as per the Card fee schedule. If after 7 (seven) days from the date of sending the Card statement, HDBank does not receive any notification from the Cardholder, then HDBank considers that the Cardholder has received the Card statement. In the case of receiving the Cardholder's complaint within 60 (sixty) days from the transaction debit date, HDBank will settle the complaints in accordance with the provisions of these Terms and Conditions, HDBank's internal regulations, and regulations of the law.

ARTICLE 11. REGULATIONS IN CASE OF SUPPLEMENTARY CARDS ISSUANCE

- 11.1. The issuance of supplementary cards to the Cardholder shall not be conducted through electronic means.
- 11.2. The Supplementary Cardholder shall exercise the rights obligations as stipulated in Article 6 of these Terms and Conditions as the Supplementary Cardholder.
- 11.3. All documentation and transaction documents of HDBank shall be delivered to the Principal Cardholder or the Supplementary Cardholder in the forms specified in these Terms and Conditions.
- 11.4. The Supplementary Cardholder(s) authorize(s) the Principal Cardholder to act on their behalf for all matters related to the Supplementary Card, such as: report the loss of the Card, renew the Card, reissue the Card, reissue the PIN, restore the PIN, receive the Card, receive the PIN, activate Supplementary Cardholder's Card, receive the one-time password (OTP), receive transaction notification messages and statements, request Card activation or Card lock, etc.
- 11.5. The validity period of the supplementary Card is dependent on the validity period of the primary Card.
- 11.6. The Supplementary Cardholder(s) has/have the right to request HDBank to initiate the Card lock process or terminate the use of the Supplementary Card as needed. However, the Supplementary Cardholder has no right to request the termination of the Primary Card's usage or to make any other requests related to the validity of these Terms and Conditions.

ARTICLE 12. REGULATIONS ON THE ISSUANCE OF ADDITIONAL CREDIT CARDS

- 12.1. HDBank shall issue one or more additional credit cards for the Cardholder's use as per the appropriate Card issuance policy stipulated by HDBank in each period within the LOC granted by HDBank.
- 12.2. In cases where HDBank issues additional cards for the Cardholder without a specific request: HDBank shall notify the Cardholder via phone/SMS/email, as registered by the Cardholder with HDBank, or through another suitable method determined by HDBank. Accordingly:
 - a. The Cardholder shall receive and activate the Card within 60 (sixty) days from the issuance date, thereby accepting the use of the Card and agreeing to comply with HDBank's Terms and Conditions.
 - b. If HDBank receives a notice of Card issuance rejection or if the Card is not activated within 60 days from the issuance date, the Cardholder is deemed to have not agreed to use the Card. In which case HDBank shall proceed to terminate the Card in accordance with HDBank's regulations in each period.
- 12.3. In the event that the Cardholder requests HDBank to issue additional cards: The Cardholder submits a request/application in writing or through other methods accepted by HDBank for HDBank to review the request/application for Card issuance. In cases where HDBank approves the issuance of additional cards for the Cardholder, the Cardholder must comply with HDBank's regulations to be issued and use the Card.

ARTICLE 13. CARD REISSUANCE/REPLACEMENT/CONVERSION, CARD RENEWAL, AND TERMINATION OF CARD USE

- 13.1. Card reissuance/replacement/conversion:

- a. In the event that the Cardholder requests HDBank to issue a new Card (in cases of Card expiration, loss, theft, damaged Card, or suspicion of misuse, etc.): HDBank reserves the right to reject this request if the Cardholder does not make full and timely payment of the minimum payment amount as per the Credit Card Statement until this minimum payment amount is fully settled. Upon HDBank's approval of issuing a new Card, the Cardholder is required to pay the fee for the issuance of the new Card. In case of issuing a new Card, the Credit Card Application previously signed by the Cardholder, along with these Terms and Conditions, will automatically be extended until the Cardholder terminates the use of the new Card (and is approved by HDBank), except in cases where there is a different agreement between the Cardholder and HDBank.
- b. The Cardholder is obligated to destroy the old Card when requesting HDBank to replace the Card/issue a new Card/convert the Card, and HDBank approves the issuance of a new Card. In cases where the Cardholder requests a Card replacement without a change in the Card number, the Cardholder is liable for all transactions related to the Card if they do not take measures to destroy the old Card.
- c. The Card reissuance/replacement/renewal/conversion shall not affect the Cardholder's responsibilities as stipulated in these Terms and Conditions, or agreements/commitments to HDBank (if any).

13.2. Card renewal:

- a. HDBank will consider and decide on the Card renewal if the Cardholder requests HDBank in writing to renew the Card before the Card expiration date. During the Card renewal application period, the Cardholder may continue to use their old Card which is still valid until they receive the new Card.
- b. Before the Card expires, HDBank may consider automatically renewing the card based on the conditions, policies, and timeline specified by HDBank. HDBank shall notify the Cardholder about the automatic Card renewal via phone/SMS/email, as registered by the Cardholder with HDBank, and/or through another suitable method determined by HDBank in each period. If the Card meets the criteria for automatic renewal, and HDBank does not receive any response from the Cardholder, the Cardholder shall be deemed to have accepted the automatic Card renewal. The new Card will be automatically renewed and sent to the Cardholder at the last registered contact address with HDBank.

13.3. Card suspension/termination/recall:

- a. In the event that the Card expires and HDBank does not approve the Card renewal (based on the information gathered from the Cardholder or the Card account), or the Cardholder does not agree to renew the Card, the Cardholder is responsible for settling the entire outstanding balance (if any) as per HDBank's notification.
- b. The Cardholder has the right to terminate the use of the card at any time and is required to provide written notice to HDBank at least 03 (three) business days in advance. The request to terminate the use of the card by the Cardholder is only effective and approved by HDBank when the Cardholder fulfills all obligations specified in these Terms and Conditions, including but not limited to the obligation to settle the entire outstanding balance for HDBank.
- c. Upon terminating the use of the card, the Cardholder must fulfill all obligations and commitments agreed upon with HDBank, including settling the entire outstanding

balance, returning the card to HDBank, and ceasing the use of the Card for purchasing goods or services, including transactions conducted through the Internet, phone, or mail.

- d. If the Cardholder fails to return the Card to HDBank, the Cardholder shall bear the cost of reporting the loss or theft of the Card as stipulated by HDBank. If the has requested HDBank to terminate the use of the Card but continues to use the Card for payment of goods and services, the Cardholder shall remain responsible for such transactions, including payments as stipulated in these Terms and Conditions.
- e. After 60 (sixty) days from the due date of the minimum payment for the unpaid billing cycle, if the Cardholder does not fully settle this minimum payment, HDBank shall temporarily suspend the Cardholder's right to use the Card. After 90 (ninety) days from the due date of the minimum payment for the unpaid billing cycle, if the Cardholder does not fully settle this minimum payment, HDBank shall terminate the use of the card, recall the card, and initiate debt recovery procedures and asset handling as stipulated in these Terms and Conditions.
- f. HDBank reserves the right to terminate the use of the Cardholder's Card before the expiry date without the Cardholder's consent or prior notice in the following cases:
 - i. The Cardholder has one or more credit extensions and/or the Card transitions to overdue debt at HDBank and/or at other credit institutions and/or is at risk of default. The evaluation of the Cardholder's ability to repay the debt is subject to HDBank's discretion;
 - ii. Transactions with unusual signs, as determined by HDBank, to ensure the security of the Cardholder's Card account;
 - iii. Maintaining the LOC, as determined by HDBank, leads to HDBank violating legal regulations;
 - iv. The Cardholder and/or the Securer (if any) violate the regulations governing Card operations, HDBank's policies, and legal provisions, including but not limited to regulations on credit extensions, collateral receipt, management, etc.
 - v. The Cardholder and/or Securer lacks civil legal capacity or is limited in civil legal capacity or is subject to indictment/prosecution/legal proceedings; the Securer is an entity dissolved, bankrupt, having its license revoked, terminated, split, merged, converted, privatized, changed in ownership; the legal representative or manager of the Securer is subject to indictment/prosecution/legal proceedings under criminal law;
 - vi. The Cardholder and/or Securer is involved in lawsuits or disputes that, according to HDBank's assessment, affect the ability to fulfill the obligations of the Cardholder and/or Securer; the Cardholder and/or Securer breaches these Terms and Conditions, contracts, agreements, or other commitments with HDBank (if any);
 - vii. The Cardholder is deceased; the Securer is deceased without an heir accepted by HDBank or without an heir to inherit the Cardholder's obligations; the Cardholder is deceased, and the entire outstanding debt of the Cardholder with HDBank has been settled by the Securer, the heir of the Cardholder, and/or any other third party.
 - viii. Changes in the foreign exchange rates/gold buying and selling prices leading to the issued LOC exceeding the value of the collateral/secured obligation, if the

- currency of the LOC differs from the currency used to determine the value of the collateral/secured obligation;
- ix. Depreciated collateral value as determined by HDBank;
 - x. Other changes to the collateral that pose management or handling risks as determined by HDBank;
 - xi. The Cardholder fails to pay the annual fee for 03 (three) consecutive statement periods or more;
 - xii. Over 11 (eleven) months from the card opening date without any card activation by the Cardholder;
 - xiii. Other cases that impact or pose a risk to the Cardholder's ability to fulfill obligations as determined by HDBank.
- g. The validity of these Terms and Conditions shall not in any way be affected by a termination of card use. The terms stipulated in these Terms and Conditions shall remain binding on the Cardholder.

ARTICLE 14. LANGUAGE

- 14.1. The primary language used in the Credit Card application, Terms and Conditions, and all related documents and materials between HDBank and the Cardholder is Vietnamese.
- 14.2. In case a foreign party is involved, the parties may agree to use a common foreign language with the Vietnamese version. In case of discrepancies between the Vietnamese version and the foreign language version, the Vietnamese version shall prevail.

ARTICLE 15. OUTSTANDING BALANCE PAYMENT METHOD

- 15.1. The card statement compilation day is the 15th (fifteenth) day of each month and/or other days as prescribed by HDBank in each period.
- 15.2. When receiving the Card statement, the Cardholder is responsible for checking and making timely payments to HDBank with the amount equal to the minimum payment value, no later than the due date as notified by HDBank in that statement period. Any inquiries or complaints related to the transactions stated on the Card statement must be submitted by the Cardholder to HDBank in writing within 15 days (including non-working days/public holidays or days on which HDBank temporarily suspends transactions), from the date HDBank sends the Card statement. If HDBank does not receive any notice from the Cardholder within this period, the Cardholder is deemed to have agreed with the details of the Card statement and agreed to settle all transactions, fees, and accrued interest as notified by HDBank through the Card statement.
- 15.3. Each month, HDBank shall send the Card statement to the Cardholder's postal address and/or email address as registered with HDBank. In case the Cardholder has not/does not receive the statement, the Cardholder is still responsible for paying HDBank the payables in the statement period.
- 15.4. Credit card outstanding balance payment method: The Cardholder may choose one of the following methods to settle the credit card outstanding balance with HDBank: registering for automatic debits from the current account (to pay the minimum balance/entire outstanding balance as per the Card statement), making payments at the transaction counter (of HDBank or other banks), making payments through ATMs, Internet banking, Mobile banking, and/or other channels as per HDBank's regulations in each period.

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- 15.5. HDBank will be authorized to automatically debit the current account opened with HDBank to settle the minimum payment amount or the entire outstanding balance as per the Card statement by registering for the "Automatic Credit Card Payment" service:
- Each month, HDBank will conduct automatic debit, crediting the Cardholder's current account 2 days prior to the due date on a daily basis until before each new statement period. The Cardholder shall ensure that the current account maintains a sufficient balance throughout the period specified for HDBank to automatically debit the account.
 - In case the current debit account balance is insufficient to cover the outstanding balance based on the Card statement registered by the Cardholder, but is still sufficient to cover the minimum payment amount, HDBank shall collect the minimum payment amount.
 - If the registered current debit account is insufficient to cover the amount the Cardholder has enrolled for automatic payment within the specified timeframe, the Cardholder is responsible for promptly contacting HDBank to settle the remaining debt on time and bear any applicable fees or interest.
- 15.6. HDBank reserves the right to automatically debit the entire available balance in the Cardholder's current account based on the Cardholder's debt repayment status if the Cardholder has enrolled for automatic debt repayment but lacks sufficient funds to cover the minimum payment amount.
- 15.7. In the event that HDBank receives a complaint from the Cardholder within the stipulated timeframe and is in the process of resolving the complaint, the Cardholder is obligated to settle all disputed transactions and any incurred fees and interest as per the monthly Card statement. If not paid, the Cardholder shall be responsible for fully settling any incurred fees and interest (if any). Upon complaint resolution, HDBank shall process the disputed transactions initiated by the Cardholder (if any).
- 15.8. The Cardholder is responsible for paying all Card transactions, including transactions via the Internet and/or other transactions deemed valid as per HDBank's regulations if HDBank can provide evidence that the Card was used for transactions without the need for the Cardholder's signature on the documents of the incurred Card transactions.
- 15.9. The Cardholder's obligation to pay the outstanding balance is executed in the following priority order:
- Debts within the due date: interest, fees, principal, etc.
 - Overdue debts: principal, interest, fees, etc.
 - Other financial obligations of the Cardholder (if any).
- In case of Card transactions of the same type, payment priority will be applied in time order or in any order that HDBank deems appropriate without prior agreement from or prior notice to the Cardholder. The priority order of debt repayment mentioned above may be subject to changes by HDBank in each period according to legal regulations.
- 15.10. In case the Cardholder breaches any obligations to HDBank, including but not limited to loan repayment obligations, guarantee payment obligations, Card repayment obligations, or third-party security obligations, etc., HDBank reserves the right to choose the obligations of the Cardholder for debt recovery in the order determined by HDBank. Accordingly, HDBank is entitled to use the funds arising from the Cardholder's Card transactions and/or the funds transferred to the Cardholder's account to recover any
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obligations of the Cardholder to HDBank. In case the payment amount of/incurred amount from the Cardholder's Card transactions and/or the funds transferred to the account are withheld/deducted by HDBank for other obligations of the Cardholder at HDBank, the Cardholder is obligated to continue fulfilling the Card obligations to HDBank.

- 15.11. If the Cardholder fails to pay or fully pay the minimum payment amount or pays after the due date, HDBank will charge a late payment fee/interest according Card service fee schedule issued by HDBank in each period.
- 15.12. All Card transactions, fees, and unpaid interest in the statement period are factored into the outstanding opening balance of the next period (no interest and fees are added to the principal). HDBank has the right to continue debiting and the Cardholder is responsible for fully paying the outstanding balance even if the existing outstanding balance exceeds the LOC.
- 15.13. Without affecting and/or affected by Clause 5.4, Article 5 of these Terms and Conditions, if the ending balance exceeds the LOC issued to the Cardholder, HDBank has the right to charge a fee for exceeding the LOC according to the Card service fee schedule issued by HDBank in each period.
- 15.14. In the event that HDBank adjusts the Card interest schedule, the application of the interest rate will be carried out according to the following principles:
- For transactions occurring 01 day after the date of interest change: The new interest rate will be applied.
 - For transactions occurring on and before the date of interest change: The old interest rate will be applied.
- 15.15. Late payment fees: If the Cardholder fails to make payment by the due date or does not pay the minimum payment amount as required by HDBank, the Cardholder shall bear a late payment fee as per HDBank's regulations.

ARTICLE 16. TRANSFER OF OVERDUE DEBTS AND COLLATERAL HANDLING/ENFORCEMENT OF SECURITY OBLIGATIONS AND DEBT RECOVERY

- 16.1. In case the Cardholder fails to pay the full minimum payment amount by the due date, HDBank reserves the right to transfer the entire principal balance to overdue debt from the due date of that payment. If the Cardholder holds multiple credit extensions with HDBank, the entire outstanding balance of those credit extensions will also be transferred to the corresponding debt group in accordance with HDBank's regulations and legal provisions applicable in each period.
- 16.2. HDBank reserves the right to recover the entire outstanding balance before the due date and terminate the Card in the following cases:
- The Cardholder breaches any term of these Terms and Conditions and other contracts/agreements/commitments with HDBank (if any);
 - The principal balance of the Cardholder's Card is transferred to overdue debt.
 - The Cardholder faces financial difficulties, which significantly affects the ability to repay the debt to HDBank according to HDBank's evaluation.
 - The Cardholder or Securer (if any) is deceased without an heir accepted by HDBank or without an heir to inherit the Cardholder's or the Securer's obligations;

- e. One or more credit extensions of the Cardholder at HDBank transfers to overdue debt at HDBank and/or at other credit institutions and/or is default or at risk of default.
 - f. The cardholder fails to provide additional collateral or alternative security interests as per HDBank's request.
 - g. The Cardholder or Securer (if any) lacks civil legal capacity or is limited in civil legal capacity or is subject to indictment/prosecution/legal proceeding under criminal law.
 - h. The recovery of the outstanding balance before the due date and the termination of the Card will be notified to the Cardholder by HDBank. The Cardholder is responsible for settling the entire outstanding balance to HDBank within the specified period as stated in the notification. If the Cardholder fails to repay the outstanding balance by the due date specified in the notification, HDBank shall take appropriate measures to recover the debt as outlined in these Terms and Conditions, other contracts, agreements, or commitments established by the Cardholder with HDBank.
- 16.3. In case the Cardholder fails to pay the full minimum amount by the due date according to the Card statement and/or fails to fulfill the obligations specified in these Terms and Conditions, HDBank reserves the right to take proactive measures to handle any legal assets of the Cardholder at HDBank (such as deposits, savings accounts, pledged/mortgaged assets, etc.) or request the implementation of security interests to recover the Cardholder's outstanding balance at HDBank without requiring the signature, stamp, or confirmation of the Cardholder; or take other debt recovery measures as stipulated by law. The order, method, and time of handling the Cardholder's asset are at the discretion of HDBank and will be notified by HDBank to the Cardholder. Debt recovery will still be carried out:
- a. Whether or not the use of the Card or Card account is terminated; or
 - b. Whether or not the outstanding balance exceeds the LOC,

ARTICLE 17. PROHIBITED ACTIONS DURING THE ISSUANCE AND USAGE OF THE CARD ISSUED BY HDBANK

- 17.1. Forgery, use, transfer, and circulation of counterfeit Cards.
- 17.2. Engaging, organizing, or facilitating others to conduct fraudulent or forged Card transactions, or fictitious transactions at a merchant.
- 17.3. Providing fraudulent or inaccurate information during the process of Card issuance;
- 17.4. Forgery of personal identification documents for online identification or engaging in actions to alter or change the content and images on personal identification documents, portrait photos, and other personal information during the identification process;
- 17.5. Theft and collusion for theft, disclosure, and provision of the Card information, the Cardholder's information, and Card transactions in violation of legal regulations.
- 17.6. Intrusion or attempted intrusion, disruption of programs or databases of the Card issuance, payment, Card switching, electronic Card transaction settlement system.
- 17.7. Using the Card for the purpose of money laundering, financing terrorism, fraud, deception, or other illegal activities.
- 17.8. Buying, selling, renting, borrowing, or lending Cards or Card information, or issuing Cards on behalf of others.

17.9. Failure to comply with the transaction limits and the scope of use for the Card as specified in Clause 2.5 of Article 2 of these Terms and Conditions in cases where HDBank issues the card digitally without taking advanced measures to identify and verify the Cardholder's information.

17.10. Other acts that violate the law and regulations of HDBank in each period.

ARTICLE 18. FORCE MAJEURE

18.1. Force majeure refers to objective and unforeseeable events that cannot be overcome despite taking all necessary measures possible, including but not limited to war, acts of terrorism, protests, strikes, riots, fires, earthquakes, floods, energy shortages, natural disasters, power outages, malfunctions/errors of ATMs, POS terminals, online payment systems, or any other machinery, equipment, processing data systems, telecommunication/Internet systems, or information exchange services that serve Card operations; actions or changes in policies, legal regulations, or at the request of competent State authorities; or other objective events beyond the control of the parties.

18.2. In the event of a Force Majeure event, HDBank shall temporarily suspend the performance of these Terms and Conditions and notify the Cardholder through methods stipulated in Article 19 of these Terms and Conditions, without incurring any liability, even compensation liability, towards the Cardholder or any third party.

18.3. Force majeure events shall not exempt the Cardholder from the obligation to fulfill payment and repayment obligations to HDBank unless otherwise approved by HDBank.

ARTICLE 19. NOTIFICATION

19.1. Any request from the Customer must be in writing and signed. HDBank may (but has no obligation to) accept and execute such requests via telex, fax, or phone which HDBank deems to have been used by the Customer; and HDBank is not responsible for any damage resulting from executing or complying with Customer requests via: telex, fax, or phone.

19.2. The Cardholder will be given prior notice by HDBank of any changes to these Terms and Conditions or other notifications and requests through posting at HDBank's branches/system, publishing on the official website of HDBank or mass media, or other means as per HDBank's regulations. The Cardholder agrees to all amendments and supplements by HDBank. In case the Cardholder disagrees, the Cardholder must respond to HDBank and request HDBank to terminate the Card and fulfill the obligations as stipulated in these Terms and Conditions, contracts, agreements, commitments, and other agreements with HDBank to terminate the Card. In case the Cardholder and/or the Securer breaches their obligation to notify changes of permanent address, temporary address, new place of residence and/or having been removed from the household registration and/or departed for more than 06 (six) months without reporting a new address or place of residence, the Cardholder and/or the Securer is considered to have concealed the address to evade their obligations with HDBank. In this case, the place of residence stated in this document and the security contract shall be deemed as the Cardholder's and/or the Securer's last known place of residence. HDBank reserves the right to request the Court or the Southern Trade Arbitration Centre (STAC) to conduct a trial in absentia. The Cardholder and/or the Securer shall accept the trial in absentia by the Court, even in cases where the Cardholder's and/or the Securer's statement cannot be obtained.

ARTICLE 20. GOVERNING LAW AND DISPUTE SETTLEMENT

- 20.1. The Contract and other agreements and commitments between HDBank and the Cardholder shall be construed in accordance with the law of Vietnam unless otherwise agreed upon by the Parties.
- 20.2. Any dispute arising from the execution of this Contract of credit card issuance and use between the Customer and HDBank will initially be settled through negotiation and mediation. The Parties agree that in the event of a dispute that can not be resolved through mediation, the dispute shall be settled in the competent court or at the Southern Trade Arbitration Center (STAC). The Cardholder agrees that the dispute resolution at the Southern Trade Arbitration Center (STAC) will be conducted through regular procedures or expedited procedures as stipulated in the STAC rules of procedures and at the discretion of HDBank.
- 20.3. In the event that a People's Court or the Southern Trade Arbitration Centre (STAC) compels the Cardholder and/or the Securer to repay a debt, the Cardholder and/or the Securer shall bear the legal fees as prescribed by law and cover all expenses incurred by HDBank during the litigation process, including: travel expenses, attorney fees (in cases where an attorney is retained).

ARTICLE 21. CREDIT INFORMATION PROVISION AGREEMENT

- 21.1. The Cardholder unconditionally agrees, does not revoke, and allows HDBank to process the Cardholder's data, search, verify information related to the Cardholder from third parties, and provide the Cardholder's information to any third party in accordance with HDBank's regulations. The Cardholder also agrees that the aforementioned third party shall have the right to provide the Cardholder's credit information to any individual/organization involved in debt collection, debt purchase, debt recovery, auditing, consulting, credit information, etc.
- 21.2. The Cardholder unconditionally agrees, does not revoke, and allows HDBank to provide credit information/receive credit information products from/to credit information companies in which HDBank is a participating organization (including VIETNAM CREDIT INFORMATION JOINT STOCK COMPANY (PCB), Business Registration No. 0102547296, first registered on November 27, 2007, and other credit information companies as notified by HDBank in each period), and credit information companies that HDBank is planning to join.
- 21.3. The Cardholder agrees that the credit information (data and relevant information of the Cardholder, etc.) provided by HDBank to credit information companies includes but is not limited to the Cardholder's identification information, credit history, repayment history, overdue or non-overdue amounts, repayment periods, lines of credit, debt categories, debt sales, execution of off-balance commitments, the Cardholder's credit score results, information on security interests, and other relevant information of the Cardholder that HDBank deems not violating to the Cardholder's legal rights, etc. The provision of credit information/receipt of credit information product(s) is carried out by HDBank through measures, methods/forms, and procedures determined by HDBank in each period.
- 21.4. The Cardholder acknowledges that: (i) Credit information provided includes sensitive personal data as regulated by the laws on personal data protection; (ii) credit information, including this sensitive personal data, is collected, processed, and kept for a minimum of 05 (five) years for the purpose of creating credit information products by specialized software of the Credit Information Companies; and (iii) all consents of the Cardholder

under this clause represent voluntary and clear understanding of the Cardholder's rights according to the provisions of relevant laws and regulations.

- 21.5. The Cardholder agrees that in the event that the credit information company's Certificate is revoked, HDBank will cease providing the Cardholder's credit information to the credit information company, and the Cardholder's credit information at the credit information company will be handled in accordance with the Government regulations on the operation of provision of credit information. HDBank shall notify the Cardholder of the processing of their credit information within a maximum period of 10 business days from the date HDBank receives the credit information company's notification regarding the plan for processing credit information.
- 21.6. In case of any changes to Article 21; Point cc, Clause 6.2, Article 6; and Point bb, Clause 7.1, Article 7, HDBank shall notify the Cardholder using a method chosen by HDBank as per the agreement between HDBank and the Cardholder. This may include, but is not limited to, written communication, email, phone calls, SMS messages, or other equivalent methods, etc. The Cardholder may consent to such amendments or supplements through authentication methods or in writing, via email, phone calls, or SMS messages, as determined by HDBank on a case-by-case basis.

ARTICLE 22. GENERAL TERMS

- 22.1. If any of these terms or conditions become invalid, void, or unenforceable under any applicable law, the validity and enforceability of the remaining terms in these Terms and Conditions shall not in any way be affected thereby.
- 22.2. Failure or delay in exercising HDBank's rights and obligations under these Terms and Conditions shall not constitute a waiver of all or part of HDBank's rights and obligations unless HDBank has notified in writing of the waiver of its rights and obligations.
- 22.3. Within the scope defined by law and these Terms and Conditions, the Cardholder acknowledges that HDBank has the right to provide information about the Cardholder to its subsidiaries, and authorizes HDBank and its subsidiaries to provide information about the Cardholder to third parties as deemed reasonable and necessary by HDBank, and permits the Cardholder's company or any other entity or individual to provide information about the Cardholder to HDBank at any time without the Cardholder's consent or authorization.
- 22.4. The contracts, agreements, and commitments between HDBank and the Cardholder regarding Card issuance and use, collateral, security interests, service fee schedules, and interest schedules are an integral part of these Terms and Conditions.
- 22.5. The Cardholder acknowledges having read, understood, and commits to strictly and fully comply with these Terms and Conditions, interest schedules, service fee schedules, and other documents related to the issuance and use of the Card issued, publicly disclosed, and sent to the Cardholder by HDBank.
- 22.6. The Cardholder acknowledges that they have been informed and provided with guidance by HDBank regarding the Card products and services, proper use, processes, potential risks, and how to handle incidents as they occur.
- 22.7. These Terms and Conditions take effect upon the Cardholder from the date the Cardholder confirms/signs/agrees to the Credit Card Application Form.